

THOMAS, J., concurring

precise label initially approved by the FDA,” *id.*, at 592, or whether it instead provides a federal floor that can be supplemented by different state standards, see Brief for Cato Institute as *Amicus Curiae* 14, n. 4. Absent a federal statutory right to sell a brand-name drug with an FDA-approved label, FDA approval “does not represent a finding that the drug, as labeled, can never be deemed unsafe by later federal action, or as in this case, the application of state law.” *Wyeth, supra*, at 592 (opinion of THOMAS, J.).

II

Applying the Court’s impossibility precedents leads to the same conclusion. The question for impossibility is whether it was “lawful under federal law for [Merck] to do what state law required of” it. *Mensing*, 564 U.S., at 618. Because “[p]re-emption analysis requires us to compare federal and state law,” I “begin by identifying the [relevant] state tort duties and federal labeling requirements.” *Id.*, at 611. Respondents’ claim here is “that state law obligated Merck to add a warning about atypical femur fractures” to the Warnings and Precautions section of Fosamax’s label. *In re Fosamax (Alendronate Sodium) Prods. Liability Litigation*, 852 F.3d 268, 282 (CA3 2017). Under the Federal Food, Drug, and Cosmetic Act, a manufacturer of a brand-name drug “bears responsibility for the content of its label at all times.” *Wyeth*, 555 U.S., at 570–571 (majority opinion). The manufacturer “is charged both with crafting an adequate label and with ensuring that its warnings remain adequate as long as the drug is on the market.” *Id.*, at 571. Generally, to propose labeling changes, the manufacturer can submit a Prior Approval Supplement (PAS) application, which requires FDA approval before the changes are made. 21 CFR §314.70(b) (2018). Alternatively, under the FDA’s Changes Being Effected (CBE) regulation, if the manufacturer would like to change a label to “add or strengthen a contraindication, warning, precaution, or adverse reaction” “to reflect

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newly acquired information,” it can change the label immediately upon filing its supplemental application with the FDA, without waiting for FDA approval. § 314.70(c)(6)(iii); see *Wyeth, supra*, at 568. If the FDA later disapproves the CBE application, “it may order the manufacturer to cease distribution of the drug product(s)” with the new labeling. § 314.70(c)(7).

Here, Merck’s impossibility pre-emption defense fails because it does not identify any federal law that “prohibited [it] from adding any and all warnings . . . that would satisfy state law.” *Ante*, at 313–314. By its reference to “the Laws of the United States,” the Supremacy Clause “requires that pre-emptive effect be given only to those federal standards and policies that are set forth in, or necessarily follow from, the statutory text that was produced through the constitutionally required bicameral and presentment procedures.” *Wyeth, supra*, at 586 (opinion of THOMAS, J.). Merck’s primary argument, based on various agency communications, is that the FDA would have rejected a hypothetical labeling change submitted via the CBE process. But neither agency musings nor hypothetical future rejections constitute pre-emptive “Laws” under the Supremacy Clause.

As the Court describes, in 2008, Merck submitted PAS applications to add certain language regarding fractures to the Adverse Reactions and the Warnings and Precautions sections of Fosamax’s label. *Ante*, at 307–308. In 2009, the FDA sent Merck a “complete response” letter “agree[ing] that atypical and subtrochanteric fractures should be added” to the Adverse Reactions section. App. 510–511. But the letter said that Merck’s proposed Warnings and Precautions language, which focused on “the risk factors for stress fractures,” was “inadequate” because “[i]dentification of ‘stress fractures’ may not be clearly related to the atypical subtrochanteric fractures that have been reported in the literature.” *Id.*, at 511. In accord with FDA regulations, the letter required Merck to take one of three actions: (1) “[r]esubmit the appli-

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cation . . . , addressing all deficiencies identified in the complete response letter”; (2) “[w]ithdraw the application . . . without prejudice to a subsequent submission”; or (3) “[a]sk the agency to provide . . . an opportunity for a hearing,” after which “the agency will either approve” or “refuse to approve the application.” 21 CFR §314.110(b); see App. 512. As this regulation suggests and the FDA has explained, complete response letters merely “infor[m] sponsors of changes that must be made before an application can be approved, *with no implication as to the ultimate approvability of the application.*” 73 Fed. Reg. 39588 (2008) (emphasis added). In other words, the 2009 letter neither marked “the consummation of the agency’s decisionmaking process” nor determined Merck’s “rights or obligations.” *Bennett v. Spear*, 520 U. S. 154, 178 (1997) (internal quotation marks omitted). Instead, it was “of a merely tentative or interlocutory nature.” *Ibid.* Therefore, the letter was not a final agency action with the force of law, so it cannot be “Law” with pre-emptive effect.

Merck’s argument that the 2009 letter and other agency communications suggest that the FDA would have denied a future labeling change fares no better: hypothetical agency action is not “Law.” As Merck acknowledges, it could have resubmitted its PAS applications, sought a hearing, or changed its label at any time through the CBE process. See Reply Brief 13. Indeed, when Merck instead decided to withdraw its PAS applications, it added atypical femoral fractures to the Adverse Reactions section through the CBE process. That process also enabled Merck to add language to the Warnings and Precautions section, but Merck did not do so. If it had, it could have satisfied its federal and alleged state-law duties—meaning that it was possible for Merck to independently satisfy both sets of duties. Merck’s belief that the FDA would have eventually rejected a CBE application does not make an earlier CBE change impossible. As the Court correctly explains, “the possibility of impossibil-

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ity [is] not enough.’” *Ante*, at 314. The very point of the CBE process is that a manufacturer can “unilaterally” make a labeling change that does not violate other federal law, *Wyeth*, 555 U. S., at 573; see *id.*, at 570; *e. g.*, 21 U. S. C. § 352, at least until the FDA rules on its application.*

Because Merck points to no statute, regulation, or other agency action with the force of law that would have prohibited it from complying with its alleged state-law duties, its pre-emption defense should fail as a matter of law.

JUSTICE ALITO, with whom THE CHIEF JUSTICE and JUSTICE KAVANAUGH join, concurring in the judgment.

I concur in the judgment because I agree with the Court’s decision on the only question that it actually decides, namely, that whether federal law allowed Merck to include in the Fosamax label the warning alleged to be required by state law is a question of law to be decided by the courts, not a question of fact. I do not, however, join the opinion of the Court because I am concerned that its discussion of the law and the facts may be misleading on remand.

*In 2007, Congress “granted the FDA statutory authority to require a manufacturer to change its drug label based on safety information that becomes available after a drug’s initial approval,” but even after this amendment, brand-name-drug “manufacturers remain responsible for updating their labels.” *Wyeth*, 555 U. S., at 567–568; see 21 U. S. C. § 355(o)(4). As I understand the Court’s opinion, if proper agency actions pursuant to this amendment, or other federal law, “prohibited the drug manufacturer from . . . satisfy[ing] state law,” state law would be pre-empted under our impossibility precedents regardless of whether the manufacturer “show[ed] that it fully informed the FDA of the justifications for the warning required by state law.” *Ante*, at 314; see, *e. g.*, *Wyeth*, 555 U. S., at 576; *id.*, at 582 (BREYER, J., concurring). Of course, the only proper agency actions are those “that are set forth in, or necessarily follow from, the statutory text,” and they must have the force of law to be pre-emptive. *Id.*, at 586 (opinion of THOMAS, J.). I am aware of no such agency action here that prevented Merck from complying with state law.

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I

I begin with the law. The Court correctly notes that a drug manufacturer may prove impossibility pre-emption by showing that “federal law (including appropriate [Food and Drug Administration (FDA)] actions) prohibited the drug manufacturer from adding any and all warnings to the drug label that would satisfy state law.” *Ante*, at 313–314. But in expounding further on the pre-emption analysis, the Court provides a skewed summary. While dwelling on our decision in *Wyeth v. Levine*, 555 U. S. 555 (2009), see *ante*, at 310–315, the Court barely notes a statutory provision enacted after the underlying events in that case that may have an important bearing on the ultimate pre-emption analysis in this case.

Under 21 U. S. C. § 355(o)(4)(A), which was enacted in 2007, Congress has imposed on the FDA a duty to initiate a label change “[i]f the Secretary becomes aware of new information, including any new safety information . . . that the Secretary determines should be included in the labeling of the drug.”* This provision does not relieve drug manufacturers of their own responsibility to maintain their drug labels, see § 355(o)(4)(I), but the FDA’s “actions,” *ante*, at 313, taken pursuant to this duty arguably affect the pre-emption analysis. This is so because, if the FDA declines to require a label change despite having received and considered information regarding a new risk, the logical conclusion is that the FDA determined that a label change was unjustified. See *United States v. Chemical Foundation, Inc.*, 272 U. S. 1, 14–15 (1926) (“The presumption of regularity supports the official acts of public officers and, in the absence of clear evidence to the contrary, courts presume that they have properly discharged their official duties”). The FDA’s duty does not depend on whether the relevant drug manufacturer, as

*Prior to October 2018, § 355(o)(4)(A)’s language contained slight differences not relevant here. See Substance Use–Disorder Prevention That Promotes Opioid Recovery and Treatment for Patients and Communities Act, Pub. L. 115–271, § 3041(b), 132 Stat. 3942–3943, effective Oct. 24, 2018.

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opposed to some other entity or individual, brought the new information to the FDA’s attention. Cf. *ante*, at 314 (“[T]he drug manufacturer [must] show that it fully informed the FDA of the justifications for the warning required by state law”). Nor does § 355(o)(4)(A) require the FDA to communicate to the relevant drug manufacturer that a label change is unwarranted; instead, the FDA could simply consider the new information and decide not to act. Cf. *ante*, at 314 (“[T]he FDA, in turn, [must have] informed the drug manufacturer that the FDA would not approve changing the drug’s label to include that warning”).

Section 355(o)(4)(A) is thus highly relevant to the pre-emption analysis, which turns on whether “federal law (*including appropriate FDA actions*) prohibited the drug manufacturer from adding any and all warnings to the drug label that would satisfy state law.” *Ante*, at 313–314 (emphasis added). On remand, I assume that the Court of Appeals will consider the effect of § 355(o)(4)(A) on the pre-emption issue in this case.

Two other aspects of the Court’s discussion of the legal background must also be mentioned. First, although the Court’s discussion of the point is a bit opaque, the Court holds—correctly, in my view—that *Wyeth*’s use of the phrase “clear evidence” was merely a rhetorical flourish. As the Court explains, a judge, in determining whether federal law would permit a label change allegedly required by state law, “must simply ask himself or herself whether the relevant federal and state laws ‘irreconcilably conflic[t].’” *Ante*, at 315 (quoting *Rice v. Norman Williams Co.*, 458 U. S. 654, 659 (1982)). Standards of proof, such as preponderance of the evidence and clear and convincing evidence, have no place in the resolution of this question of law.

Second, for reasons that entirely escape me, the Court refuses to acknowledge that there are two ways in which a drug manufacturer may attempt to alter a drug’s label. The Court notes that a manufacturer may proceed under the

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FDA’s “‘changes being effected’” or “‘CBE’” regulation, which permits a manufacturer to change a label without prior FDA approval under some circumstances. See *ante*, at 304–305, 315. But the Court refuses to note that a manufacturer may (and, in many circumstances, must) submit a Prior Approval Supplement (PAS). 21 CFR §314.70(b) (2018). As the name suggests, changes proposed in a PAS must receive FDA approval before drug manufacturers may make the changes. §314.70(b)(3). And “[h]istorically,” the FDA has “accepted PAS applications instead of CBE supplements, as occurred in this case, particularly where significant questions exist on whether to revise or how to modify existing drug labeling.” Brief for United States as *Amicus Curiae* 5.

II

I now turn to the facts. Resolution of the legal question that the Court decides does not require much discussion of the facts, but if the Court wishes to include such a summary, its presentation should be balanced. Instead, the Court provides a one-sided account. For example, it highlights historical accounts dating back to the 1990s that purportedly linked atypical femoral fractures with Fosamax use, see *ante*, at 306, 308, but it omits any mention of the extensive communication between Merck and the FDA during the relevant period.

A reader of the Court’s opinion will inevitably be left with the impression that, once the FDA rejected Merck’s proposed warning in 2009, neither the FDA nor Merck took any other actions related to atypical femoral fractures “until 2011,” *ante*, at 307. But that is simply not true.

While Merck’s 2008 proposal was pending, the FDA remained in contact with Merck about the issue of atypical femoral fractures, which Merck, at the time, labeled as a type of stress fracture. See, *e. g.*, App. 707, 746–748. An internal Merck memorandum describes a phone call in which an FDA official allegedly told Merck that “[t]he conflicting nature of the literature does not provide a clear path forward,

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and more time will be need[ed] for FDA to formulate a formal opinion on the issue of a precaution around these data.” *Id.*, at 767. In an e-mail about a week later, another FDA official told Merck that the FDA would “close out” Merck’s applications if Merck “agree[d] to hold off on the [Precautions] language at this time.” *Id.*, at 508. The official went on to say that the FDA “would then work with . . . Merck to decide on language for a [Precautions] atypical fracture language, if it is warranted.” *Ibid.*

Then, months after the FDA rejected Merck’s proposed warning, the FDA issued a Safety Announcement regarding its “[o]ngoing safety review of oral bisphosphonates and atypical subtrochanteric femur fractures.” *Id.*, at 519. The Safety Announcement stated that, “[a]t this point, the data that FDA has reviewed have not shown a clear connection between bisphosphonate use and a risk of atypical subtrochanteric femur fractures.” *Ibid.* Nonetheless, the Safety Announcement announced the FDA’s intent to further study the issue alongside a task force formed to address the atypical fractures. *Id.*, at 519–520. And the Safety Announcement concluded by admonishing healthcare professionals to “continue to follow the recommendations in the drug label when prescribing oral bisphosphonates” and patients to “not stop taking their medication unless told to do so by their healthcare professional.” *Id.*, at 520–521.

In September 2010, the task force published its report, which concluded that, although there was no established “causal association” between bisphosphonates and atypical femoral fractures, “recent observations suggest that the risk rises with increasing duration of exposure, and there is concern that lack of awareness and underreporting may mask the true incidence of the problem.” *Id.*, at 284. The same day, the FDA issued a statement acknowledging the task force report and committing to “considering label revisions.” *Id.*, at 523–525. And in October 2010, the FDA issued another Safety Announcement in which the FDA stated that it

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would initiate changes in the Precautions section of bisphosphonate drug labels to warn of atypical femoral fractures. *Id.*, at 246–249. It was not until then that, pursuant to its § 355(o)(4)(A) obligations, the FDA instructed Merck to include a warning about such fractures in its Fosamax drug labels. *Id.*, at 526–534.

Thus, for years the FDA was: aware of this issue, communicating with drug manufacturers, studying all relevant information, and instructing healthcare professionals and patients alike to continue to use Fosamax as directed. For this reason, the FDA itself, speaking through the Solicitor General, takes the position that the FDA’s decision not to require a label change prior to October 2010 reflected the FDA’s “determin[ation]” that a new warning “should [not] be included in the labeling of the drug,” § 355(o)(4)(A). See Brief for United States as *Amicus Curiae* 30, 33–34.

For these reasons, I concur in the judgment only.

Syllabus

HERRERA *v.* WYOMINGCERTIORARI TO THE DISTRICT COURT OF WYOMING,
SHERIDAN COUNTY

No. 17–532. Argued January 8, 2019—Decided May 20, 2019

An 1868 treaty between the United States and the Crow Tribe promised that in exchange for most of the Tribe’s territory in modern-day Montana and Wyoming, its members would “have the right to hunt on the unoccupied lands of the United States so long as game may be found thereon . . . and peace subsists . . . on the borders of the hunting districts.” 15 Stat. 650. In 2014, Wyoming charged petitioner Clayvin Herrera with off-season hunting in Bighorn National Forest and being an accessory to the same. The state trial court rejected Herrera’s argument that he had a protected right to hunt in the forest pursuant to the 1868 Treaty, and a jury convicted him. On appeal, the state appellate court relied on the reasoning of the Tenth Circuit’s decision in *Crow Tribe of Indians v. Repsis*, 73 F. 3d 982—which in turn relied upon this Court’s decision in *Ward v. Race Horse*, 163 U. S. 504—and held that the treaty right expired upon Wyoming’s statehood. The court rejected Herrera’s argument that this Court’s subsequent decision in *Minnesota v. Mille Lacs Band of Chippewa Indians*, 526 U. S. 172, repudiated *Race Horse* and therefore undercut the logic of *Repsis*. In any event, the court concluded, Herrera was precluded from arguing that the treaty right survived Wyoming’s statehood because the Crow Tribe had litigated *Repsis* on behalf of itself and its members. Even if the 1868 Treaty right survived Wyoming’s statehood, the court added, it did not permit Herrera to hunt in Bighorn National Forest because the treaty right applies only on unoccupied lands and the national forest became categorically occupied when it was created.

Held:

1. The Crow Tribe’s hunting rights under the 1868 Treaty did not expire upon Wyoming’s statehood. Pp. 337–348.

(a) This case is controlled by *Mille Lacs*, not *Race Horse*. *Race Horse* concerned a hunting right guaranteed in an 1868 treaty with the Shoshone and Bannock Tribes containing language identical to that at issue here. Relying on two lines of reasoning, the *Race Horse* Court held that Wyoming’s admission to the United States in 1890 extinguished the Shoshone-Bannock Treaty right. First, the doctrine that new States are admitted to the Union on an “equal footing” with existing States led the Court to conclude that affording the Tribes a pro-

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tected hunting right lasting after statehood would conflict with the power vested in those States—and newly shared by Wyoming—to regulate the killing of game within their borders.” 163 U.S., at 514. Second, the Court found no evidence in the Shoshone-Bannock Treaty itself that Congress intended the treaty right to continue in “perpetuity.” *Id.*, at 514–515. *Mille Lacs* undercut both pillars of *Race Horse*’s reasoning. *Mille Lacs* established that the crucial inquiry for treaty termination analysis is whether Congress has “clearly express[ed]” an intent to abrogate an Indian treaty right, 526 U.S., at 202, or whether a termination point identified in the treaty itself has been satisfied, *id.*, at 207. Thus, while *Race Horse* “was not expressly overruled” in *Mille Lacs*, it “retain[s] no vitality,” *Limbach v. Hooven & Allison Co.*, 466 U.S. 353, 361, and is repudiated to the extent it held that treaty rights can be impliedly extinguished at statehood. Pp. 337–342.

(b) *Repsis* does not preclude Herrera from arguing that the 1868 Treaty right survived Wyoming’s statehood. Even when the elements of issue preclusion are met, an exception may be warranted if there has been an intervening “‘change in [the] applicable legal context.’” *Bobby v. Bies*, 556 U.S. 825, 834. Here, *Mille Lacs*’ repudiation of *Race Horse*’s reasoning—on which *Repsis* relied—justifies such an exception. Pp. 342–344.

(c) Applying *Mille Lacs*, Wyoming’s admission into the Union did not abrogate the Crow Tribe’s off-reservation treaty hunting right. First, the Wyoming Statehood Act does not show that Congress “clearly expressed” an intent to end the 1868 Treaty hunting right. See 526 U.S., at 202. There is also no evidence in the treaty itself that Congress intended the hunting right to expire at statehood, or that the Crow Tribe would have understood it to do so. Nor does the historical record support such a reading of the treaty. The State counters that statehood, as a practical matter, rendered all the lands in the State occupied. Even assuming that Wyoming presents an accurate historical picture, the State, by using statehood as a proxy for occupation, subverts this Court’s clear instruction that treaty-protected rights “are not impliedly terminated upon statehood.” *Id.*, at 207. To the extent that the State seeks to rely on historical evidence to establish that all land in Wyoming was functionally “occupied” by 1890, its arguments fall outside the question presented and are unpersuasive in any event. Pp. 344–348.

2. Bighorn National Forest did not become categorically “occupied” within the meaning of the 1868 Treaty when the national forest was created. Construing the treaty’s terms as “‘they would naturally be understood by the Indians,’” *Washington v. Washington State Commer-*

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cial Passenger Fishing Vessel Assn., 443 U. S. 658, 676, it is clear that the Tribe would have understood the word “unoccupied” to denote an area free of residence or settlement by non-Indians. That interpretation follows from several cues in the treaty’s text. For example, the treaty made the hunting right contingent on peace “among the whites and Indians on the borders of the hunting districts,” 15 Stat. 650, thus contrasting the unoccupied hunting districts with areas of white settlement. Historical evidence confirms this reading of “unoccupied.” Wyoming’s counterarguments are unavailing. The Federal Government’s exercise of control and withdrawing of the forest lands from settlement would not categorically transform the territory into an area resided on or settled by non-Indians; quite the opposite. Nor would mining and logging of the forest lands prior to 1897 have caused the Tribe to view the Bighorn Mountains as occupied. Pp. 348–352.

3. This decision is limited in two ways. First, the Court holds that Bighorn National Forest is not categorically occupied, not that all areas within the forest are unoccupied. Second, the state trial court decided that Wyoming could regulate the exercise of the 1868 Treaty right “in the interest of conservation,” an issue not reached by the appellate court. The Court also does not address the viability of the State’s arguments on this issue. P. 352.

Vacated and remanded.

SOTOMAYOR, J., delivered the opinion of the Court, in which GINSBURG, BREYER, KAGAN, and GORSUCH, JJ., joined. ALITO, J., filed a dissenting opinion, in which ROBERTS, C. J., and THOMAS and KAVANAUGH, JJ., joined, *post*, p. 353.

George W. Hicks, Jr., argued the cause for petitioner. With him on the briefs were *Andrew C. Lawrence*, *Kyle A. Gray*, *Steven T. Small*, and *Hadassah Reimer*.

Frederick Liu argued the cause for the United States as *amicus curiae* urging reversal. With him on the brief were *Solicitor General Francisco*, *Acting Assistant Attorney General Wood*, *Deputy Solicitor General Kneedler*, *Elizabeth Ann Peterson*, and *Rachel Heron*.

John G. Knepper, Chief Deputy Attorney General of Wyoming, argued the cause for respondent. With him on the brief were *Peter K. Michael*, Attorney General of Wyoming, *Jay Jerde*, Special Assistant Attorney General, *James Kaste*,

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Deputy Attorney General, and *Erik Petersen* and *D. David Dewald*, Senior Assistant Attorneys General.*

JUSTICE SOTOMAYOR delivered the opinion of the Court.

In 1868, the Crow Tribe ceded most of its territory in modern-day Montana and Wyoming to the United States. In exchange, the United States promised that the Crow Tribe “shall have the right to hunt on the unoccupied lands of the United States so long as game may be found thereon” and “peace subsists . . . on the borders of the hunting districts.” Treaty Between the United States of America and the Crow Tribe of Indians (1868 Treaty), Art. IV, May 7, 1868, 15 Stat. 650. Petitioner Clayvin Herrera, a member

*Briefs of *amici curiae* urging reversal were filed for the Crow Tribe of Indians by *Heather Daphne Whiteman Runs Him*, *Daniel David Lew-erenz*, and *Joel West Williams*; for the Eastern Shoshone Tribe by *Richard Verri*; for Indian Law Professors by *Monte Mills* and *Alexander Blewett III*; for the National Congress of American Indians et al. by *Marc D. Slonim*; for Natural Resources Law Professors by *Colette Routel*; for the Pacific and Inland Northwest Treaty Tribes by *Maryanne E. Mohan*, *Anne E. Tweedy*, and *Rob Roy Smith*; for the Shoshone-Bannock Tribes of the Fort Hall Reservation by *William F. Bacon*, *Monte Gray*, *Douglas B. L. Endreson*, *Anne D. Noto*, and *Frank S. Holleman IV*; for the Southern Ute Indian Tribe et al. by *Thomas H. Shipps* and *David C. Smith*; and for Timothy P. McCleary et al. by *Ashley C. Parrish* and *Jeremy M. Bylund*.

Briefs of *amici curiae* urging affirmance were filed for the State of Nebraska et al. by *Douglas J. Peterson*, Attorney General of Nebraska, *James D. Smith*, Solicitor General, *David A. Lopez*, Deputy Solicitor General, and *Ryan S. Post* and *Chris C. Di Lorenzo*, Assistant Attorneys General, and by the Attorneys General of their respective States as follows: *Derek Schmidt* of Kansas, *Jeff Landry* of Louisiana, *Wayne Stenehjem* of North Dakota, *Marty J. Jackley* of South Dakota, and *Ken Paxton* of Texas; for the Association of Fish and Wildlife Agencies by *Carol Framp-ton*; for the Citizen Equal Rights Foundation et al. by *Gary R. Leistico*; for Safari Club International by *Anna M. Seidman* and *Douglas S. Bur-din*; for the Western Association of Fish and Wildlife Agencies et al. by *Jennifer A. MacLean*; and for the Wyoming Stock Growers Association et al. by *William Perry Pendley*.

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of the Tribe, invoked this treaty right as a defense against charges of off-season hunting in Bighorn National Forest in Wyoming. The Wyoming courts held that the treaty-protected hunting right expired when Wyoming became a State and, in any event, does not permit hunting in Bighorn National Forest because that land is not “unoccupied.” We disagree. The Crow Tribe’s hunting right survived Wyoming’s statehood, and the lands within Bighorn National Forest did not become categorically “occupied” when set aside as a national reserve.

I

A

The Crow Tribe first inhabited modern-day Montana more than three centuries ago. *Montana v. United States*, 450 U. S. 544, 547 (1981). The Tribe was nomadic, and its members hunted game for subsistence. J. Medicine Crow, *From the Heart of the Crow Country* 4–5, 8 (1992). The Bighorn Mountains of southern Montana and northern Wyoming “historically made up both the geographic and the spiritual heart” of the Tribe’s territory. Brief for Crow Tribe of Indians as *Amicus Curiae* 5.

The westward migration of non-Indians began a new chapter in the Tribe’s history. In 1825, the Tribe signed a treaty of friendship with the United States. Treaty With the Crow Tribe, Aug. 4, 1825, 7 Stat. 266. In 1851, the Federal Government and tribal representatives entered into the Treaty of Fort Laramie, in which the Crow Tribe and other area tribes demarcated their respective lands. *Montana*, 450 U. S., at 547–548. The Treaty of Fort Laramie specified that “the tribes did not ‘surrender the privilege of hunting, fishing, or passing over’ any of the lands in dispute” by entering the treaty. *Id.*, at 548.

After prospectors struck gold in Idaho and western Montana, a new wave of settlement prompted Congress to initiate further negotiations. See F. Hoxie, *Parading Through*

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History 88–90 (1995). Federal negotiators, including Commissioner of Indian Affairs Nathaniel G. Taylor, met with Crow Tribe leaders for this purpose in 1867. Taylor acknowledged that “settlements ha[d] been made” upon the Crow Tribe’s lands and that their “game [was] being driven away.” Institute for the Development of Indian Law, Proceedings of the Great Peace Commission of 1867–1868, p. 86 (1975) (hereinafter Proceedings). He told the assembled tribal leaders that the United States wished to “set apart a tract of [Crow Tribe] country as a home” for the Tribe “forever” and to buy the rest of the Tribe’s land. *Ibid.* Taylor emphasized that the Tribe would have “the right to hunt upon” the land it ceded to the Federal Government “as long as the game lasts.” *Ibid.*

At the convening, Tribe leaders stressed the vital importance of preserving their hunting traditions. See *id.*, at 88 (Black Foot: “You speak of putting us on a reservation and teaching us to farm. . . . That talk does not please us. We want horses to run after the game, and guns and ammunition to kill it. I would like to live just as I have been raised”); *id.*, at 89 (Wolf Bow: “You want me to go on a reservation and farm. I do not want to do that. I was not raised so”). Although Taylor responded that “[t]he game w[ould] soon entirely disappear,” he also reassured tribal leaders that they would “still be free to hunt” as they did at the time even after the reservation was created. *Id.*, at 90.

The following spring, the Crow Tribe and the United States entered into the treaty at issue in this case: the 1868 Treaty. 15 Stat. 649. Pursuant to the 1868 Treaty, the Crow Tribe ceded over 30 million acres of territory to the United States. See *Montana*, 450 U. S., at 547–548; Art. II, 15 Stat. 650. The Tribe promised to make its “permanent home” a reservation of about 8 million acres in what is now Montana and to make “no permanent settlement elsewhere.” Art. IV, 15 Stat. 650. In exchange, the United States made certain promises to the Tribe, such as agreeing to construct buildings on the reservation, to provide the Tribe members

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with seeds and implements for farming, and to furnish the Tribe with clothing and other goods. 1868 Treaty, Arts. III–XII, *id.*, at 650–652. Article IV of the 1868 Treaty memorialized Commissioner Taylor’s pledge to preserve the Tribe’s right to hunt off-reservation, stating:

“The Indians . . . shall have the right to hunt on the unoccupied lands of the United States so long as game may be found thereon, and as long as peace subsists among the whites and Indians on the borders of the hunting districts.” *Id.*, at 650.

A few months after the 1868 Treaty signing, Congress established the Wyoming Territory. Congress provided that the establishment of this new Territory would not “impair the rights of person or property now pertaining to the Indians in said Territory, so long as such rights shall remain unextinguished by treaty.” An Act to Provide a Temporary Government for the Territory of Wyoming (Wyoming Territory Act), July 25, 1868, ch. 235, 15 Stat. 178. Around two decades later, the people of the new Territory adopted a constitution and requested admission to the United States. In 1890, Congress formally admitted Wyoming “into the Union on an equal footing with the original States in all respects,” in an Act that did not mention Indian treaty rights. An Act to Provide for the Admission of the State of Wyoming into the Union (Wyoming Statehood Act), July 10, 1890, ch. 664, 26 Stat. 222. Finally, in 1897, President Grover Cleveland set apart an area in Wyoming as a public land reservation and declared the land “reserved from entry or settlement.” Presidential Proclamation No. 30, 29 Stat. 909. This area, made up of lands ceded by the Crow Tribe in 1868, became known as the Bighorn National Forest. See App. 234; *Crow Tribe of Indians v. Reppis*, 73 F. 3d 982, 985 (CA10 1995).

B

Petitioner Clayvin Herrera is a member of the Crow Tribe who resides on the Crow Reservation in Montana. In 2014,

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Herrera and other Tribe members pursued a group of elk past the boundary of the reservation and into the neighboring Bighorn National Forest in Wyoming. They shot several bull elk and returned to Montana with the meat. The State of Wyoming charged Herrera for taking elk off-season or without a state hunting license and with being an accessory to the same.

In state trial court, Herrera asserted that he had a protected right to hunt where and when he did pursuant to the 1868 Treaty. The court disagreed and denied Herrera's pre-trial motion to dismiss. See Nos. CT-2015-2687, CT-2015-2688 (4th Jud. Dist. C. C., Sheridan Cty., Wyo., Oct. 16, 2015), App. to Pet. for Cert. 37, 41. Herrera unsuccessfully sought a stay of the trial court's order from the Wyoming Supreme Court and this Court. He then went to trial, where he was not permitted to advance a treaty-based defense, and a jury convicted him on both counts. The trial court imposed a suspended jail sentence, as well as a fine and a 3-year suspension of Herrera's hunting privileges.

Herrera appealed. The central question facing the state appellate court was whether the Crow Tribe's off-reservation hunting right was still valid. The U. S. Court of Appeals for the Tenth Circuit, reviewing the same treaty right in 1995 in *Crow Tribe of Indians v. Repsis*, had ruled that the right had expired when Wyoming became a State. 73 F. 3d, at 992-993. The Tenth Circuit's decision in *Repsis* relied heavily on a 19th-century decision of this Court, *Ward v. Race Horse*, 163 U. S. 504, 516 (1896). Herrera argued in the state court that this Court's subsequent decision in *Minnesota v. Mille Lacs Band of Chippewa Indians*, 526 U. S. 172 (1999), repudiated *Race Horse*, and he urged the Wyoming court to follow *Mille Lacs* instead of the *Repsis* and *Race Horse* decisions that preceded it.

The state appellate court saw things differently. Reasoning that *Mille Lacs* had not overruled *Race Horse*, the court held that the Crow Tribe's 1868 Treaty right expired upon

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Wyoming’s statehood. No. 2016–242 (4th Jud. Dist., Sheridan Cty., Wyo., Apr. 25, 2017), App. to Pet. for Cert. 31–34. Alternatively, the court concluded that the *Repsis* Court’s judgment merited issue-preclusive effect against Herrera because he is a member of the Crow Tribe, and the Tribe had litigated the *Repsis* suit on behalf of itself and its members. App. to Pet. for Cert. 15–17, 31; App. 258. Herrera, in other words, was not allowed to relitigate the validity of the treaty right in his own case.

The court also held that, even if the 1868 Treaty right survived Wyoming’s entry into the Union, it did not permit Herrera to hunt in Bighorn National Forest. Again following *Repsis*, the court concluded that the treaty right applies only on “unoccupied” lands and that the national forest became categorically “occupied” when it was created. See App. to Pet. for Cert. 33–34; *Repsis*, 73 F. 3d, at 994. The state appellate court affirmed the trial court’s judgment and sentence.

The Wyoming Supreme Court denied a petition for review, and this Court granted certiorari. 585 U. S. 1029 (2018). For the reasons that follow, we now vacate and remand.

II

We first consider whether the Crow Tribe’s hunting rights under the 1868 Treaty remain valid. Relying on this Court’s decision in *Mille Lacs*, Herrera and the United States contend that those rights did not expire when Wyoming became a State in 1890. We agree.

A

Wyoming argues that this Court’s decision in *Race Horse* establishes that the Crow Tribe’s 1868 Treaty right expired at statehood. But this case is controlled by *Mille Lacs*, not *Race Horse*.

Race Horse concerned a hunting right guaranteed in a treaty with the Shoshone and Bannock Tribes. The

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Shoshone-Bannock Treaty and the 1868 Treaty with the Crow Tribe were signed in the same year and contain identical language reserving an off-reservation hunting right. See Treaty Between the United States of America and the Eastern Band of Shoshonees [*sic*] and the Bannack [*sic*] Tribe of Indians (Shoshone-Bannock Treaty), July 3, 1868, 15 Stat. 674–675 (“[T]hey shall have the right to hunt on the unoccupied lands of the United States so long as game may be found thereon, and so long as peace subsists among the whites and Indians on the borders of the hunting districts”). The *Race Horse* Court concluded that Wyoming’s admission to the United States extinguished the Shoshone-Bannock Treaty right. 163 U. S., at 505, 514–515.

Race Horse relied on two lines of reasoning. The first turned on the doctrine that new States are admitted to the Union on an “equal footing” with existing States. *Id.*, at 511–514 (citing, *e.g.*, *Lessee of Pollard v. Hagan*, 3 How. 212 (1845)). This doctrine led the Court to conclude that the Wyoming Statehood Act repealed the Shoshone and Bannock Tribes’ hunting rights, because affording the Tribes a protected hunting right lasting after statehood would be “irreconcilably in conflict” with the power—“vested in all other States of the Union” and newly shared by Wyoming—“to regulate the killing of game within their borders.” 163 U. S., at 509, 514.

Second, the Court found no evidence in the Shoshone-Bannock Treaty itself that Congress intended the treaty right to continue in “perpetuity.” *Id.*, at 514–515. To the contrary, the Court emphasized that Congress “clearly contemplated the disappearance of the conditions” specified in the treaty. *Id.*, at 509. The Court decided that the rights at issue in the Shoshone-Bannock Treaty were “essentially perishable” and afforded the Tribes only a “temporary and precarious” privilege. *Id.*, at 515.

More than a century after *Race Horse* and four years after *Repsis* relied on that decision, however, *Mille Lacs* undercut

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both pillars of *Race Horse*'s reasoning. *Mille Lacs* considered an 1837 treaty that guaranteed to several bands of Chippewa Indians the privilege of hunting, fishing, and gathering in ceded lands "during the pleasure of the President." 526 U. S., at 177 (quoting 1837 Treaty With the Chippewa, 7 Stat. 537). In an opinion extensively discussing and distinguishing *Race Horse*, the Court decided that the treaty rights of the Chippewa bands survived after Minnesota was admitted to the Union. 526 U. S., at 202–208.

Mille Lacs approached the question before it in two stages. The Court first asked whether the Act admitting Minnesota to the Union abrogated the treaty right of the Chippewa bands. Next, the Court examined the Chippewa Treaty itself for evidence that the parties intended the treaty right to expire at statehood. These inquiries roughly track the two lines of analysis in *Race Horse*. Despite these parallel analyses, however, the *Mille Lacs* Court refused Minnesota's invitation to rely on *Race Horse*, explaining that the case had "been qualified by later decisions." 526 U. S., at 203. Although *Mille Lacs* stopped short of explicitly overruling *Race Horse*, it methodically repudiated that decision's logic.

To begin with, in addressing the effect of the Minnesota Statehood Act on the Chippewa Treaty right, the *Mille Lacs* Court entirely rejected the "equal footing" reasoning applied in *Race Horse*. The earlier case concluded that the Act admitting Wyoming to the Union on an equal footing "repeal[ed]" the Shoshone-Bannock Treaty right because the treaty right was "irreconcilable" with state sovereignty over natural resources. *Race Horse*, 163 U. S., at 514. But *Mille Lacs* explained that this conclusion "rested on a false premise." 526 U. S., at 204. Later decisions showed that States can impose reasonable and nondiscriminatory regulations on an Indian tribe's treaty-based hunting, fishing, and gathering rights on state land when necessary for conservation. *Id.*, at 204–205 (citing *Washington v. Washington*